Bank Custodian Agreement

for the custody and management of fiat currency assets
in respect of Compartment 920 within Opus – Chartered Issuances S.A.

DRAFT — 18 May 2026

NOT FOR EXECUTION

THIS BANK CUSTODIAN AGREEMENT (the “Agreement”) is made and entered into as of **[Date to be inserted upon execution]**

BETWEEN

1. Opus – Chartered Issuances S.A., a company duly incorporated under the laws of Luxembourg, acting as an unregulated securitisation company (société de titrisation) within the meaning of the Luxembourg Securitisation Law of 22 March 2004, as amended, with its registered office at 28, Boulevard F. W. Raiffeisen, L-2411 Luxembourg, Luxembourg, registered with the Luxembourg Trade and Companies Register under number B180859, acting in respect of its compartment 920 (the “**Issuer**”)

AND

2. [Name of the Bank], a credit institution duly licensed and regulated under the laws of [REDACTED], with its registered office at [REDACTED] (the “**Bank Custodian**” or “**Bank**”)

(each a “Party” and together the “Parties”)

RECITALS

(A) The Issuer has established Compartment 920 for the purpose of issuing certificates linked to the Finest Next-Gen Defence Innovators Index as crypto securities under the German Electronic Securities Act (eWpG).

(B) In connection with the operation of the Compartment, the Issuer requires the services of a credit institution for the safekeeping of fiat currencies and the processing of fiat-denominated transactions.

(C) The Bank Custodian is a credit institution authorised and supervised by the competent regulatory authority in its jurisdiction and has the capacity to provide the custody and transaction management services required by the Issuer.

(D) The Parties wish to formalise the terms under which the Bank Custodian shall provide custody and related services to the Issuer in respect of Compartment 920.

NOW, THEREFORE, the Parties agree as follows:

1. DEFINITIONS

1.1. Unless otherwise defined herein, capitalised terms shall have the meanings ascribed to them in the Compartment Agreement between FI finest Investments GmbH and the Issuer, or as set out below:

“Custody Account” means the segregated bank account(s) opened and maintained by the Bank Custodian in the name and on behalf of the Issuer acting for Compartment 920.

“Fiat Assets” means all fiat currencies, cash balances, and equivalent monetary assets held in the Custody Account.

“Instruction” means any written instruction, in the agreed format, given by or on behalf of the Issuer to the Bank Custodian in relation to the Fiat Assets.

2. APPOINTMENT AND SCOPE OF SERVICES

2.1. The Issuer hereby appoints the Bank Custodian, and the Bank Custodian hereby accepts such appointment, to provide the following services in respect of Compartment 920:

- Secure custody of Fiat Assets in segregated accounts, clearly identified as belonging to Compartment 920 and separated from the Bank Custodian’s own assets and the assets of other clients;
- Transaction processing for deposits, withdrawals, and transfers of Fiat Assets in accordance with Instructions;
- Brokerage and conversion services between fiat currencies and, where applicable, facilitating conversions between fiat and crypto-assets through regulated channels;
- Reporting and account statements in the format and frequency agreed between the Parties;
- Compliance screening, including anti-money laundering (AML), know-your-customer (KYC), and sanctions screening on all transactions processed through the Custody Account.

2.2. The Bank Custodian shall perform the services in accordance with applicable laws, including where relevant the German Electronic Securities Act (Gesetz über elektronische Wertpapiere), regulations, and industry best practices, and in compliance with all Instructions properly given by the Issuer.

3. SEGREGATION OF ASSETS

3.1. The Bank Custodian shall hold all Fiat Assets in one or more Custody Accounts that are clearly segregated from the Bank Custodian's proprietary assets and from the assets held for other clients.

3.2. The Bank Custodian acknowledges that the Fiat Assets in the Custody Account form part of the Compartment Assets and are subject to the segregation and limited recourse provisions of the Luxembourg Securitisation Law.

3.3. The Bank Custodian shall not exercise any right of set-off, lien, or similar claim against the Fiat Assets, except as may be expressly provided in this Agreement in respect of its fees and expenses.

4. INSTRUCTIONS AND AUTHORISED SIGNATORIES

4.1. The Bank Custodian shall act only upon Instructions received from authorised representatives of the Issuer, the list of whom shall be communicated in writing by the Issuer upon execution of this Agreement and updated from time to time.

4.2. The Bank Custodian shall be entitled to rely, without further enquiry, on any Instruction that it reasonably believes to have been given by an authorised representative.

4.3. The Bank Custodian may refuse to execute any Instruction that it reasonably considers to be in breach of applicable laws, regulations, or sanctions requirements.

5. FEES AND EXPENSES

5.1. The Issuer shall pay the Bank Custodian fees for the services provided under this Agreement as set out in Schedule 1 (Fee Schedule).

[Schedule 1 — Fee Schedule to be agreed and inserted]

5.2. All fees and expenses of the Bank Custodian shall be charged to the Compartment and deducted from the Compartment Assets.

6. LIABILITY AND INDEMNITY

6.1. The Bank Custodian shall be liable for any loss of Fiat Assets resulting from its negligence, wilful misconduct, or fraud.

6.2. The Bank Custodian shall not be liable for any loss arising from circumstances beyond its reasonable control, including but not limited to force majeure events, failure of telecommunications or IT systems not attributable to the Bank Custodian, or actions of governmental or regulatory authorities.

6.3. The Issuer shall indemnify and hold harmless the Bank Custodian from and against any losses, damages, costs, or expenses arising out of the Bank Custodian's proper performance of its duties under this Agreement, provided the Bank Custodian has not acted with negligence, wilful misconduct, or fraud.

6.4. The aggregate liability of the Bank Custodian under this Agreement shall be limited to the Compartment Assets. The Issuer's payment obligations to the Bank Custodian are limited to the assets of Compartment 920 (limited recourse).

7. REPRESENTATIONS AND WARRANTIES

7.1. The Bank Custodian represents and warrants that:

- it is duly licensed and authorised as a credit institution in its jurisdiction;
- it has the capacity, expertise, and infrastructure to provide the services contemplated by this Agreement;
- it shall comply with all applicable laws, regulations, and supervisory requirements.

7.2. The Issuer represents and warrants that:

- it is duly incorporated and validly existing under the laws of Luxembourg;
- Compartment 920 has been duly established in accordance with the Securitisation Law;
- the execution and performance of this Agreement have been duly authorised.

8. CONFIDENTIALITY

8.1. Each Party shall keep confidential all information received from the other Party in connection with this Agreement and shall not disclose such information to any third party without the prior written consent of the other Party, except as required by law, regulation, or order of a competent authority.

8.2. This obligation of confidentiality shall survive the termination of this Agreement for a period of two (2) years.

9. TERM AND TERMINATION

9.1. This Agreement shall commence on the date of execution and shall continue until terminated by either Party.

9.2. Either Party may terminate this Agreement by providing ninety (90) days' written notice to the other Party.

9.3. Upon termination, the Bank Custodian shall cooperate in good faith to facilitate the orderly transfer of the Fiat Assets to a successor custodian designated by the Issuer.

9.4. Termination of this Agreement shall not affect any accrued rights or obligations of the Parties.

10. GOVERNING LAW AND JURISDICTION

10.1. This Agreement shall be governed by and construed in accordance with the substantive laws of Luxembourg, without regard to its conflict of law principles.

10.2. Any dispute arising out of or in relation to this Agreement shall be resolved by the ordinary courts of Luxembourg City (Grand Duchy of Luxembourg).

* * *

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date first written above.

For and on behalf of Opus – Chartered Issuances S.A., acting in respect of its Compartment 920:

Name: ______________________________

Title: Authorised Signatories

Signature: __________________________

For and on behalf of [Bank Custodian — name redacted]:

Name: ______________________________

Title: ______________________________

Signature: __________________________